



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 19 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11683

EXPIRATION DATE: May 30, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Clean Harbors Environmental Services, Incorporated
Braintree, Massachusetts
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation, in commerce, of a DOT Specification 111A100W1 tank car, containing a class 3 material, meeting all DOT requirements except that the tank car is equipped with a non-reclosing pressure relief device. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(a)(15)
5. BASIS. This emergency exemption is based on Clean Harbors Environmental Services, Incorporated's application of April 17, 1996, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class or Division	Identification number	Packing Group
Waste flammable liquid, n.o.s. (benzene, methyl ethyl ketone)	3	UN 1993	III

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT specification 111A100W1 tank car, GATX 64124, meeting all DOT specification requirements except that the tank car is equipped with a non-reclosing pressure relief device.

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(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. **GRANTEE:** Consolidated Rail Corporation
Philadelphia, Pennsylvania
2. **PURPOSE AND LIMITATION:** This emergency exemption authorizes the shipment of two DOT Specification 105J500W tank car, containing a class 8 materia poisonous by inhalationl, meeting all DOT requirements except that the tank cars are overweight. This exemption provides no relief from any regulations other than as specifically stated.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 173.31(a); 173:24b(a)(1); 179.13; and 174.3.
5. **BASIS.** This emergency exemption is based on Consolidated Rail Corporation's application of April 17, 1996, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous Materials Description			
Proper Shipping Name	Hazard Class or Division	Identification Number	Packing Group
Titanium tetrachloride	8	UN 1838	II

7. **PACKAGING(S) and SAFETY CONTROL MEASURES:**
 - a. **PACKAGING** - Packaging prescribed are two DOT specification 105J500W tank cars, UTLX 900290 and GATX 98041, meeting all DOT specification requirements except that the tank cars have been overloaded with approximately 13,400 and 1200 pounds respectively.

8. SPECIAL PROVISIONS.

a. Shipment of tank cars UTLX 900290 and GATX 98041 are authorized from Consolidated Rail Corporation, Elkhart, Indiana, to SCM Chemicals, Ashtabula, Ohio, a distance of approximately 294 miles utilizing the most direct route available via Consolidated Rail Corporation.

b. Maximum authorized speed for trains transporting tank cars GATX 98041 and UTLX 900290 is 30 miles per hour.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration (FRA) is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety Enforcement, RRS-12
Hazardous Materials Division
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

b. All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

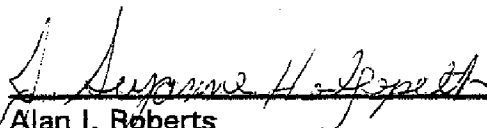
b. Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS.

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 19 1996

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA